

Participation Attachment #1

PARTICIPATION ATTACHMENT BETWEEN COMPAGNIE IBM FRANCE SAS AND SALESFORCE.COM FRANCE SAS

Reference is made to the SALESFORCE AND IBM GLOBAL RESELLER AGREEMENT between Salesforce.com Inc. and International Business Machines Corporation dated October 15, 2020 (the “**Reseller Agreement**”).

This Participation Attachment (“**PA**”) is entered into by and between Compagnie IBM France S.A.S., a simplified joint-stock company (Société par Actions Simplifiée), with a share capital of 663 265 053,00 €, registered with the Nanterre Trade Registry under number Nanterre B 552 118 465, having its registered office at 17, avenue de l'Europe, 92275 Bois Colombes Cedex, France (“**IBM**” or “**Buyer**”) and salesforce.com France S.A.S., a simplified joint-stock company (Société par Actions Simplifiée), with a share capital of 37 000,00 €, registered with the Paris Trade Registry under number 483 993 226 RCS, having its registered office at 3, avenue Octave Gréard, 75007 Paris, France (“**SFDC**” or “**Seller**”).

This PA adopts and incorporates by reference all of the terms and conditions of the Reseller Agreement (including the Reseller DPA) and any attachments thereto (“**Attachments**”) in effect as of the date of this PA (exclusive of any Participation Attachments) (hereinafter the “**Existing Agreement**”).

This PA is effective as of the later of the dates beneath the parties’ signatures below (the “**Effective Date**”). Except as otherwise set forth herein, the terms of the Existing Agreement shall apply to this PA. Capitalized terms used herein and not otherwise defined have the meanings set forth in Existing Agreement.

By entering into this Participation Attachment, a Reseller Authorized Affiliate or an Affiliate of SFDC (as applicable) agrees to be bound by the terms of the Reseller Agreement as if it were an original party thereto.

Using this PA, IBM may order Services available from the Seller in accordance with, and subject to, the terms and conditions of this PA and the Existing Agreement. This PA and the Existing Agreement are the complete agreement regarding transactions hereunder.

This PA automatically incorporates any future amendments to the Existing Agreement and Attachments. Such amendments will be made a part of this PA to the extent that the amendments do not conflict with the terms of this PA, unless otherwise agreed to in writing by the parties to this PA.

The following terms and conditions apply to transactions performed entirely within France only and amend the other provisions of the Reseller Agreement to bring the conduct of the parties' transactions into conformity with local law and practice.

1. Termination for Cause

For the sake of clarity, Section 14.2 (“Termination for Cause”) of the Reseller Agreement applies to any material breach of this Participation Attachment by the Seller or the Buyer.

2. Compliance with French Labor Regulations

Seller will provide the Services in accordance with public policy rules (“*dispositions d’ordre public*”) of French labor law applicable to SFDC’s provision of the Services to its customers generally (i.e., without regard for Reseller’s or any Customer’s particular use of the Services), and subject to Reseller and Customer’s use of the Services in accordance with the Reseller Agreement, the Documentation, and the applicable Service Order.

3. Overdue Charges

For all Order Forms issued by the Seller under this Participation Attachment, Section 7.4 of the Reseller Agreement must be replaced by the following:

Participation Attachment #1

Overdue Charges. *If any invoiced amounts are not received by SFDC from Reseller by the due date, then at without limiting SFDC's rights or remedies, those charges may accrue late interest at the rate of 3 times the French legal interest rate of the outstanding balance per month. Notwithstanding any and all penalties for late payment, a fixed amount of EUR 40 will be automatically payable by the Reseller as a fixed indemnity for collection fees payable by the creditor in the event of late payment. If any fees owed to SFDC by Reseller under an Order Form are more than thirty (30) days overdue, then SFDC reserves the right to suspend Services under that Order Form upon ten (10) days prior written notice to Reseller until paid in full.*

4. Governing Law and Venue

For all Order Forms issued by the Seller under this Participation Attachment, Sections 16.7 and 16.8 of the Reseller Agreement must be replaced by the following:

Governing Law. *This Agreement, and any disputes arising out of or related hereto, shall be governed exclusively by the laws of France.*

Venue. *The courts located in Paris, France will have exclusive jurisdiction over any dispute relating to this Agreement, and each party consents to the exclusive jurisdiction of those courts.*

In the event of any conflict in the terms of the Existing Agreement, the order of precedence will be: (i) this PA; (ii) the Reseller Agreement inclusive of any and all Attachments (excluding any Participation Attachments) in effect as of the date of this PA. In the event that the Existing Agreement is terminated, the terms and conditions of this Participation Attachment shall survive such termination and remain in effect for purposes of this Participation Attachment only.

For the sake of clarity, the order of precedence set forth in Section 16.9 of the Reseller Agreement remains unchanged, and any applicable Order Form will prevail over the Existing Agreement.

This Participation Attachment may be executed electronically and in counterparts.

Signed by each party's authorized representative:

ACCEPTED AND AGREED TO:

Compagnie IBM France S.A.S.

By:

Title:

Date:

Signature:

ACCEPTED AND AGREED TO:

salesforce.com France S.A.S.

By:

Title:

Date:

Signature: